

Babu Ram v. M.D., Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 21 April 2016 · Writ-C No. 17688 of 2016 · **Writ disposed; relegated to clause 6.5(b) complaint, recovery stayed, restoration on deposit.**

HEADNOTE

A writ challenging recovery of electricity dues on a disputed bill is not entertained where clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides a complaint before the competent authority. The petition was disposed of with liberty to complain under clause 6.5(b) within one week, a direction to decide that complaint in accordance with law within two weeks, stay of recovery for four weeks or till disposal of the complaint, and restoration of supply upon deposit of the amount.

FACTUAL SUMMARY

Babu Ram, a consumer of Paschimanchal Vidyut Vitran Nigam Ltd., filed a writ petition in the Allahabad High Court challenging recovery proceedings initiated by the distribution company for outstanding electricity dues. He disputed the correctness of the bill on which the recovery was based. Counsel for the petitioner and the licensee were heard. The Court did not examine the bill on merits, recording that disputed questions of fact were involved.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

disputed bill — complaint under clause 6.5(b)

HOLDING

Where a consumer challenges recovery of electricity dues by disputing the accuracy of the bill and disputed questions of fact are involved, the writ court will not examine the bill on merits. Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 furnishes the remedy of a complaint before the competent authority. The writ is disposed of with liberty to make that complaint, a time-bound direction to decide it in accordance with law, stay of recovery pending that process, and restoration of supply upon deposit of the amount. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE OUTSTANDING DUES SOUGHT TO BE RECOVERED

The Court declined to examine disputed questions of fact and relegated the petitioner to a clause 6.5(b) complaint. ¶ 1